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PLATFORM USER AGREEMENT

Terms and Conditions for Customers and Users

Document Version 2.0 (Amended and Restated) | Effective Date: [Insert Date]

This version supersedes Document Version 1.0 dated 5 June 2026.

Registration Number: COY-J7RCG5G | TPIN 71241378 | Registered Office: Area 14, Lilongwe, Malawi

1. Introduction and Acceptance

This Platform User Agreement ("**Agreement**") is a legally binding agreement between **Vero360** Limited, a private company limited by shares incorporated in the Republic of Malawi ("**Vero360**", "we", "us", or "our"), and any individual who registers for, accesses, or uses the **Vero360** Super App ("**Platform**", the "**User**", "you").

By creating a **User** Account, downloading the App, browsing the **Platform**, or otherwise using the **Platform** in any way, the **User** confirms that this **Agreement** has been read and understood, and agrees to be bound by it, together with the **Vero360** Privacy Policy, the Subscription and Payment Policy, and any other policy referenced in this **Agreement** (together, the "**Platform** Policies"). Where the **User** does not agree to this **Agreement** or any **Platform** Policy, the **User** shall not access or use the **Platform**.

The **Platform** is made available on an "as is" and "as available" basis, without any advice, recommendation, or endorsement by **Vero360** as to any **Provider**, Service, or third party.

2. Definitions

In this **Agreement**, the following terms have the meanings given below:

Term	Meaning
App / Platform	The Vero360 Super App, and any related websites, APIs, or services operated by Vero360 Limited.
Services	Ride hailing, food delivery, parcel delivery, e-commerce purchases, accommodation bookings, and other service bookings facilitated through the Platform.
Provider	Any driver, merchant, courier, accommodation host, or independent service provider registered on the Platform to fulfil Services. Providers are independent third parties and not employees, agents, partners, or representatives of Vero360.
User Account	The account a User creates to register for and access the Platform.
Content	Text, images, ratings, reviews, or other material a User or Provider submits through or in connection with the Platform.
User	Any individual who registers for, accesses, or uses the Platform as a customer.
Losses	Any and all losses, damages, costs, expenses, fines, penalties, or liabilities of any kind, whether direct, indirect, or consequential.

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Term	Meaning
PawaPay	The third-party payment gateway used by Vero360 to collect payments and facilitate payouts and Wallet withdrawals on the Platform.
Required Procedures	The steps that must be completed before funds are released, including completion of the service or delivery, any confirmation required under Section 9, the absence of an open dispute, and applicable verification and compliance checks.
Wallet	The in-app balance of a Provider to which released funds are credited and from which funds may be withdrawn.
Vero360, we, us, our	Vero360 Limited, registration number COY-J7RCG5G, TPIN 71241378.

3. Eligibility

- The **User** shall be at least 18 years old, or the age of majority in Malawi, and shall have full legal capacity to enter into a binding contract.
- The **User** shall provide accurate, current, and complete information when registering and shall keep such information up to date.
- **Vero360** may, at its sole discretion and without liability, refuse registration, or suspend, restrict, or close a **User** Account where this **Agreement** is breached, where fraud or misuse is suspected, or where **Vero360** reasonably considers it necessary to protect the **Platform**, other **Users**, **Providers**, or third parties.

4. Account Registration and Security

- The **User** shall be solely responsible for keeping login details, PIN, and One Time Passwords confidential and secure, and for all activity that occurs under the **User's** account, whether or not authorised by the **User**.
- The **User** shall notify **Vero360** immediately at info@vero360.app of any unauthorised use of the **User's** account. **Vero360** shall have no liability for losses arising from unauthorised use of an account occurring before such notification is received and reasonably actioned.
- Certain **Services** may require identity verification (Know-Your-Client) before use, in line with **Vero360's KYC** Verification procedures. **Vero360** may decline to provide **Services** where verification is incomplete or unsuccessful.

5. Description of Services

Vero360 operates a technology platform that connects **Users** with independent, third party **Providers** offering: (a) ride hailing; (b) food and parcel delivery; (c) e-commerce marketplace purchases; (d) accommodation bookings; and (e) other bookable services.

Vero360 is a technology intermediary only. **Vero360** itself does not provide transportation, prepare food, sell goods, operate accommodation, or deliver services, and does not own, control, employ, supervise, or direct any **Provider**. **Providers** are independent contractors and are solely responsible for the **Services** they supply, including their legality, quality, safety, and fitness for purpose. Nothing in this **Agreement** creates an employment, agency, joint venture, or partnership relationship between **Vero360** and any **Provider** or **User**. The contract for the underlying ride, delivery,

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purchase, stay, or service is formed directly and exclusively between the **User** and the **Provider**, and **Vero360** is not a party to that contract.

6. Acceptable Use

When using the **Platform**, the **User** shall not:

- Provide false, misleading, or fraudulent information.
- Harass, threaten, abuse, or discriminate against any **Provider**, **Vero360** personnel, or other **User**.
- Attempt to complete a transaction outside the **Platform** to avoid applicable fees, or induce a **Provider** to do so.
- Use the **Platform** to transport, sell, or request anything illegal under Malawian law, or otherwise use the **Platform** for any unlawful, fraudulent, or improper purpose.
- Interfere with, disrupt, reverse engineer, scrape, or attempt to gain unauthorised access to the **Platform**, its systems, or its data.
- Impersonate any person or entity, or misrepresent the **User's** affiliation with any person or entity.

Breach of this Section 6 is a material breach of this **Agreement** and may result in immediate suspension or termination of the **User's** account, in addition to any other remedy available to **Vero360**, including referral to law enforcement.

7. Fees, Pricing, and Payments

- Prices for rides, deliveries, goods, accommodation, and services are set by **Providers** or generated by the **Platform**, and may include a **Vero360** service fee, shown before the **User** confirms a transaction. This service fee is added on top of the price set by the **Provider** and is not deducted from it. The service fee is determined by the price band in which the **Provider's** price falls, in accordance with the **Commission Schedule** below. **Vero360** does not guarantee that prices are error free and reserves the right to correct pricing errors and, where a transaction has already been confirmed on the basis of an error, to cancel or adjust that transaction.
- Payments are processed through **PawaPay**, an independent third-party payment service provider; **Vero360** does not store the **User's** full card or mobile money details and is not responsible for any act, omission, delay, error, or security incident of **PawaPay** or any other third-party payment provider.
- The **User** is solely responsible for any taxes, duties, or charges applicable to the **User's** transactions on the **Platform**.
- Subscription based features are governed by the separate Subscription and Payment Policy.

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Commission Schedule (Service Fee Ranges)

The service fee added to the **User's** total is shown in the **Platform** before a transaction is confirmed. The amount added across each price band is as follows:

Provider Price (set in the app)	Amount Added (Service Fee)
MWK 100 – 5,000	MWK 10 – 500
MWK 5,001 – 10,000	about MWK 450 – 900
MWK 10,001 – 20,000	about MWK 800 – 1,600
MWK 20,001 – 50,000	about MWK 1,400 – 3,500
MWK 50,001 – 100,000	about MWK 3,000 – 6,000
MWK 100,001 – 500,000	about MWK 5,000 – 25,000
MWK 500,001 – 2,000,000	about MWK 20,000 – 80,000
MWK 2,000,001 – 10,000,000	about MWK 66,000 – 330,000
MWK 10,000,001 – 20,000,000	about MWK 300,000 – 600,000
MWK 20,000,001 and above	from about MWK 500,000

Commission is added to the customer total and is never deducted from the merchant's price. Amounts are shown as ranges across each price band. Commission at band starts is rounded to the nearest whole kwacha. Commission applies to the merchant-entered price; payment processing and payout arrangements are separate.

> **Example:** Merchant price MWK 5,000 + amount added MWK 500. **The customer pays MWK 5,500; the merchant price remains MWK 5,000.**

8. In-App Transaction Requirement and Off-Platform Risk Warning

All purchases, bookings, and payments shall be completed within the **Vero360** App. Before any transaction is confirmed, the App shall display a warning message reminding the **User** to pay only through the **Platform**.

Where a **User** chooses, against this warning, to transact with a **Provider** outside the App, for example by paying cash directly or through a private arrangement, the **User** does so entirely at the **User's** own risk. **Vero360** cannot verify or track that transaction, has no visibility into its terms, and has no ability to intervene. To the fullest extent permitted by law, **Vero360** shall have no responsibility or liability of any kind where the **User** is scammed, receives nothing, receives non-conforming goods or services, or suffers any other loss as a result of transacting outside the App, regardless of whether the introduction to the **Provider** was made through the **Platform**. The buyer protections described in Section 9 apply strictly and only to transactions completed and paid for within the App.

9. Payment Release, Wallet Access, and Courier Order Protection

- Payments are collected at checkout through **PawaPay**. Funds are released once the transaction is complete and all **Required Procedures** have been met. Released funds are credited to the **Provider's Wallet** and are

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available for instant withdrawal, subject to the operational availability of the relevant mobile money network. There is no standard seven (7) day waiting period.

- The seven (7) day confirmation period applies only to marketplace orders delivered by courier. For such orders, the buyer shall confirm receipt in the App after receiving and checking the item, and has seven (7) days after delivery to confirm receipt or report an issue. The buyer need not wait for the seven (7) day period to end and may confirm as soon as the item has been received and checked.
- **Receipt confirmed:** once all **Required Procedures** are met, funds are released to the **Provider** and become available for instant withdrawal.
- **Issue reported:** where there is a problem with the order, such as the item not arriving, arriving damaged, or not matching its description, the buyer shall notify **Vero360** within the seven (7) day period to request a refund or raise a dispute, providing such evidence as **Vero360** may reasonably request. Funds may remain on hold while the dispute is reviewed.
- Where the buyer does not confirm receipt or raise a dispute within seven (7) days after delivery, the order shall be treated as accepted and the funds are automatically released once all other **Required Procedures** have been met. No further claim may be made against **Vero360** in respect of that order, without affecting any right the buyer may have against the **Provider** or under applicable law.
- **Vero360's** payment hold protection ends once funds are released. This does not affect the **User's** rights under applicable law.
- **Vero360** acts solely as a limited payment facilitator in this process and is not a guarantor of any **Provider's** performance.
- **Vero360's** decision on a dispute raised under this Section is made on a reasonable, good-faith basis using the information available to it, is final as between the **User** and **Vero360** for the purposes of releasing or withholding funds on hold, and does not affect any right the **User** may separately have against the **Provider**. **Vero360** may suspend release of disputed funds pending investigation and shall not be liable for any resulting delay.
- No interest is payable to the **User** on funds held pending release.
- For rides, food delivery, accommodation, and other instant **Services**, and for marketplace orders not delivered by courier, funds are released once the **Service** or transaction is complete and all **Required Procedures** have been met, as shown in the App at the time of the transaction. No seven (7) day period applies.
- An order or booking may be cancelled within the cancellation window shown at the time of booking; cancellation fees may apply thereafter.

10. Ratings, Reviews, and Content

- The **User** may rate and review **Providers** after a completed transaction. Ratings and reviews reflect the opinion of the individual **User**, not of **Vero360**, and **Vero360** does not verify or guarantee their accuracy.
- **Vero360** may, but is not obliged to, monitor, edit, or remove **Content** that is abusive, defamatory, false, infringing, or otherwise breaches this **Agreement**, and accepts no liability for **Content** it does not remove.
- By submitting **Content**, the **User** grants **Vero360** a perpetual, irrevocable, worldwide, royalty-free, sub-licensable licence to use, reproduce, adapt, publish, and display that **Content** for the purpose of operating, providing, promoting, and improving the **Platform**, and warrants that the **Content** does not infringe the rights of any third party.

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11. Relationship with Providers

Vero360 acts solely as a technology intermediary connecting **Users** and **Providers** and does not control, direct, or supervise any **Provider's** performance of a **Service**. As set out in Section 5, **Providers** are independent contractors and are not employees, agents, or representatives of **Vero360**. To the fullest extent permitted by law, **Vero360** is not liable for any act, omission, negligence, misconduct, or breach of contract by a **Provider**, including in relation to the safety, legality, quality, or timeliness of any **Service**. **Vero360** may, at its discretion, provide reasonable assistance in resolving disputes between a **User** and a **Provider** and may suspend or remove **Providers** who breach **Vero360's** standards, but is under no obligation to do so and such assistance does not constitute an admission of liability.

12. Data Protection and Privacy

Vero360 collects and processes the **User's** personal data as a data controller in accordance with the **Vero360** Privacy Policy and the Malawi **Data Protection Act, 2024 (Act No. 3 of 2024)**. The **Malawi Communications Regulatory Authority (MACRA)** is designated as Malawi's Data Protection Authority under that Act. By using the **Platform**, the **User** consents to the collection and processing of data reasonably necessary to provide the **Services**.

Where the **User** grants device permission, **Vero360** accesses location data to match **Users** with nearby **Providers**, track active trips and deliveries, and support nearby marketplace, food, and accommodation listings. Location data is accessed only in the foreground, while the App is open and in active use, and is not collected in the background. The **User** may deny or revoke location permission at any time through device settings, though this may limit the **Services** available; full detail on location and other data handling is set out in the **Vero360** Privacy Policy.

Vero360 maintains reasonable technical and organisational security measures appropriate to the nature of the data it holds, consistent with sections 13 and 35 of the **Data Protection Act, 2024**, but does not guarantee that unauthorised access, loss, or disclosure will never occur. In the event of a personal data breach affecting a **User**, **Vero360** will notify **MACRA** and affected **Users** within the timelines prescribed under sections 36 and 37 of that Act. To the fullest extent permitted by law, **Vero360's** liability for any data security incident that occurs despite such reasonable measures is limited in accordance with Section 15.

13. Intellectual Property

All intellectual property in the **Platform**, including the **Vero360** name, logo, software, and app, belongs to **Vero360** Limited or its licensors. The **User** is granted a limited, non-exclusive, non-transferable, revocable licence to use the App for the **User's** personal, non-commercial use, which may be suspended or revoked on suspension or termination of the **User's** account.

14. Disclaimer of Warranties

To the fullest extent permitted by Malawian law, the **Platform** and all **Services** accessed through it are provided "as is" and "as available", without warranties of any kind, whether express, implied, or statutory, including any implied warranties of merchantability, satisfactory quality, fitness for a particular purpose, or non-infringement. **Vero360** does not warrant that the **Platform** will be uninterrupted, timely, secure, or error free, that defects will be corrected, or that any **Provider**, **Content**, or **Service** will meet the **User's** requirements or expectations. The **User** uses the **Platform**, and engages with **Providers**, at the **User's** own risk.

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15. Limitation of Liability

To the maximum extent permitted by Malawian law, **Vero360** shall not be liable for any indirect, incidental, special, consequential, exemplary, or punitive loss or damage, including loss of profit, revenue, business, goodwill, or data, arising out of or in connection with the **User's** use of the **Platform** or any **Service** provided by a **Provider**, whether the claim is based in contract, tort (including negligence), statute, or otherwise, and whether or not **Vero360** has been advised of the possibility of such loss.

Subject to applicable law, **Vero360's** total aggregate liability to the **User** arising out of or in connection with this **Agreement**, however arising, shall not exceed the greater of (a) the amount paid by the **User** for the specific transaction giving rise to the claim, or (b) the total service fees paid by the **User** to **Vero360** (excluding amounts passed through to **Providers**) in the three (3) months immediately preceding the event giving rise to the claim.

Nothing in this **Agreement** excludes or limits liability that cannot lawfully be excluded or limited under the laws of Malawi, including liability for death or personal injury caused by **Vero360's** own negligence, or fraud.

16. Force Majeure

Vero360 shall not be liable for any delay or failure to perform any obligation under this **Agreement** where the delay or failure results from any cause beyond its reasonable control, including power or network outages, acts of God, war, civil unrest, strikes, government action, or failure of a third-party service provider such as **PawaPay** or a telecommunications network.

17. Indemnification

The **User** agrees to indemnify, defend, and hold harmless **Vero360**, its officers, directors, employees, and agents from and against any and all **Losses** (including reasonable legal fees) arising from or relating to: (a) the **User's** breach of this **Agreement** or any **Platform** Policy; (b) the **User's** misuse of the **Platform**; (c) the **User's** violation of any law or the rights of any third party; (d) **Content** submitted by the **User**; or (e) any dispute or interaction between the **User** and a **Provider**, including any transaction conducted outside the App as described in Section 8.

18. Suspension and Termination

- **Vero360** may suspend or terminate a **User** Account, with or without notice, for breach of this **Agreement**, suspected fraud or illegal activity, risk to the **Platform**, other **Users**, or **Providers**, or other reasonable grounds. Notice will be given where practicable and where withholding notice is not necessary to protect the **Platform** or third parties.
- The **User** may close the **User's** account at any time by contacting info@vero360.app, subject to settlement of any outstanding transactions or amounts owed.
- Sections 8, 9 (in respect of transactions already completed), 10, 13, 14, 15, 16, 17, and 20-through 22 of this **Agreement** survive suspension, termination, or expiry of the **User's** account.

19. Complaints and Dispute Resolution

Complaints may be raised through in-app support or info@vero360.app. **Vero360** shall attempt to resolve disputes amicably, and the **User** agrees to first raise a complaint with **Vero360** and allow a reasonable opportunity (not exceeding thirty (30) days) to resolve it before commencing legal proceedings, except where urgent interim relief is required.

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Security related complaints, such as fraud or unauthorised account access, may be escalated in line with **Vero360's** Cybersecurity, Fraud Prevention and Customer Protection Policy, including referral to the Malawi Police Cyber Crime Unit where appropriate.

Each **User** agrees to bring any claim against **Vero360** in the **User's** own individual capacity, and not as a plaintiff or class member in any purported class, collective, or representative proceeding, to the extent permitted by Malawian law. Unresolved disputes are subject to the exclusive jurisdiction of the courts of Malawi.

20. Governing Law

This **Agreement** is governed by the laws of the Republic of Malawi, including the **Electronic Transactions and Cyber Security Act, 2016**, the **Consumer Protection Act**, and the **Data Protection Act, 2024 (Act No. 3 of 2024)**.

21. Amendments

Vero360 may update this **Agreement** from time to time, in its sole discretion, including to reflect changes in the law, the **Platform**, or **Vero360's** business practices. Material changes shall be notified through the App or to the **User's** registered contact details, with a reasonable effective date. Continued use of the **Platform** after changes take effect constitutes acceptance of the updated **Agreement**; a **User** who does not accept the updated **Agreement** must stop using the **Platform**.

22. General Provisions

- Electronic communications. The **User** consents to receive notices, disclosures, and communications from **Vero360** electronically, including by in-app notification, email, or SMS, and agrees that such communications satisfy any legal requirement for written notice.
- No waiver. No failure or delay by **Vero360** in exercising any right under this **Agreement** shall operate as a waiver of that right, nor shall any single or partial exercise preclude any other exercise of that or any other right.
- Assignment. **Vero360** may assign, transfer, or subcontract this **Agreement**, in whole or in part, at its discretion, including in connection with a merger, acquisition, or sale of assets. The **User** may not assign or transfer this **Agreement** or any rights under it without **Vero360's** prior written consent.
- Severability and entire agreement. Where any provision of this **Agreement** is found invalid or unenforceable, that provision shall be limited or eliminated to the minimum extent necessary, and the remaining provisions shall continue in full force. This **Agreement**, together with the Privacy Policy and Subscription and Payment Policy, constitutes the entire agreement between the **User** and **Vero360** regarding the **User's** use of the **Platform**, and supersedes all prior agreements and understandings on that subject.

23. Contact Us

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